

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MAMADOU MAGASSA,

SUMMONS

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. CHRISTOPHER
BURNS and P.O. JOHN DOES # 1-4,

Defendants.

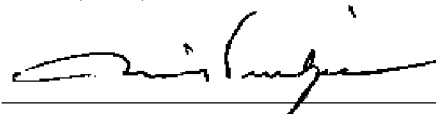
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve your answer on Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York). If you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates New York County as the venue for trial based on the location of the incident: in front of 723 Seventh Avenue, New York, NY 10019.

Dated: Forest Hills, NY
September 6, 2023

Yours, etc.,



Law Office of Michael Dreishpoon, P.C.
Michael Dreishpoon, Esq.
Attorneys for Plaintiff
MAMADOU MAGASSA
118-35 Queens Blvd., Ste. 1500
Forest Hills, NY 11375
718-793-5555

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. CHRISTOPHER BURNS
100 Church Street
New York, NY 10007

P.O. JOHN DOES # 1-4
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MAMADOU MAGASSA,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, P.O. CHRISTOPHER
BURNS and P.O. JOHN DOES # 1-4,

Defendants.

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Plaintiff, MAMADOU MAGASSA, by his attorneys, the Law Office of Michael Dreishpoon, P.C., complaining of the defendants, alleges, upon information and belief, as follows:

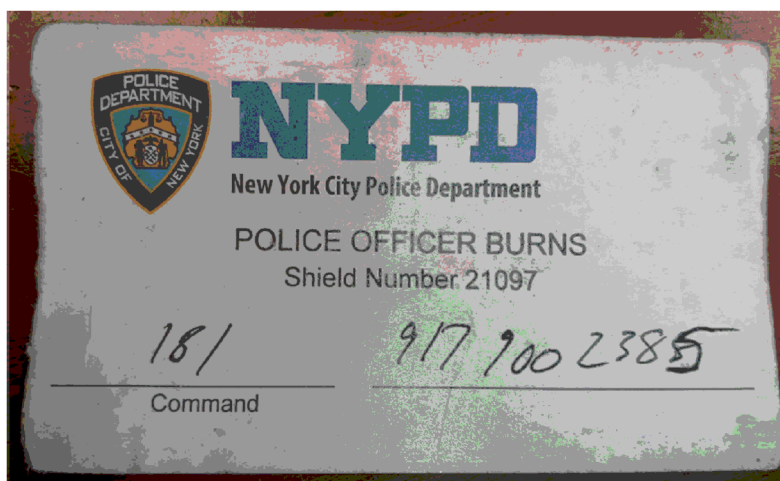
1. At all times herein mentioned, Plaintiff, MAMADOU MAGASSA, was and remains a resident of Bronx County, NY.
2. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and remains a domestic municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. At all times herein mentioned, Defendant, P.O. CHRISTOPHER BURNS, was an employee of the New York City Police Department (hereinafter "the NYPD").
4. At all times herein mentioned, Defendants, P.O. JOHN DOES # 1-4, were employees of the NYPD.
5. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, maintained, managed, supervised, and controlled the NYPD as part of, and in conjunction with, its municipal functions.
6. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, employed and

- supervised P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4.
7. P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 are graduates of the NYPD's Police Academy.
 8. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4, and to conform their conduct to a standard for the protection of individuals such as Plaintiff against the unreasonable risk of harm by conducting themselves in such a manner so as to not intentionally, wantonly, and/or negligently injure citizens such as Plaintiff.
 9. At all times herein mentioned, Defendant, THE CITY OF NEW YORK, had the duty to competently and sufficiently train, within the Police Academy and at the command, precinct, and patrol levels, P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 in the protection of Plaintiff's rights under the Constitution of the United States of America.
 10. At all times herein mentioned, P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 were acting in their capacity as employees, agents, and/or servants of Defendant, THE CITY OF NEW YORK.
 11. At all times herein mentioned, Defendants were acting under the color of state law and their acts constituted "state action."
 12. Plaintiff served a Notice of Claim on the City of New York on March 29, 2023 and testified at a General Municipal Law § 50-h hearing on July 28, 2023.
 13. More than thirty days have elapsed since the claims upon which this action is founded were presented to the comptroller for adjustment, and the comptroller has neglected or

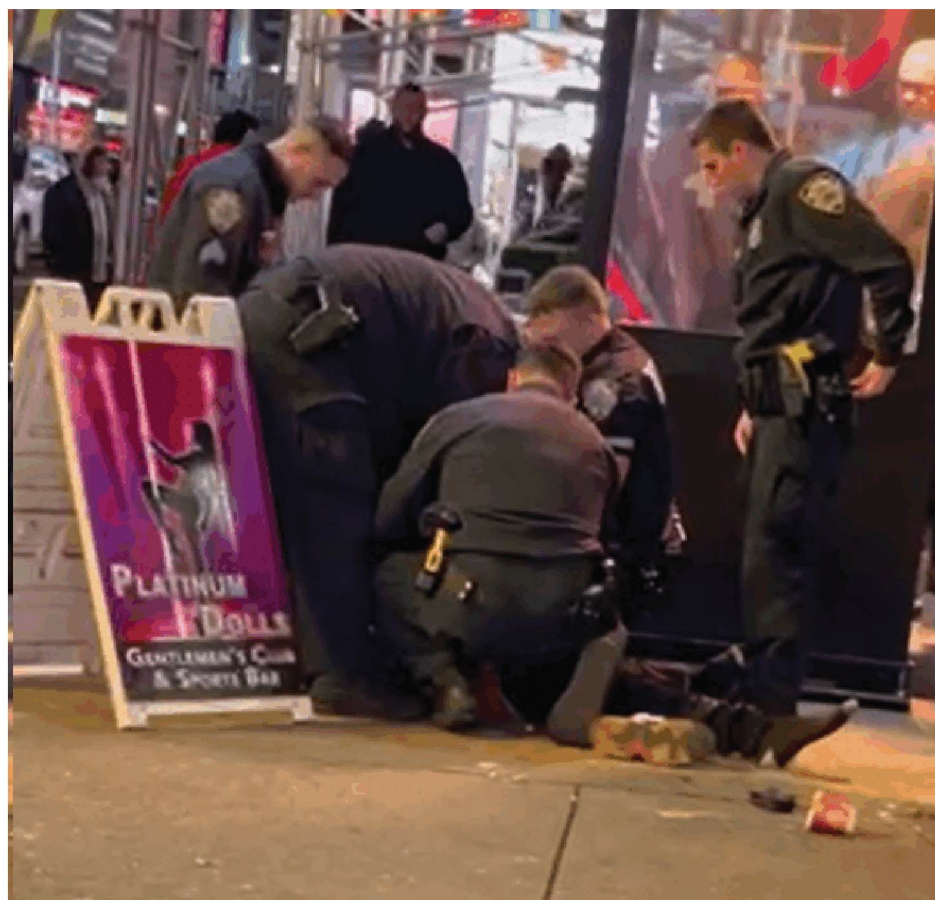
refused to make an adjustment or payment thereof for more than thirty days after such presentment.

FIRST CAUSE OF ACTION:
EXCESSIVE FORCE UNDER STATE LAW

14. On the night of January 5, 2023, Plaintiff took a train from his home into Manhattan and walked to the music studio located at 723 Seventh Avenue, New York, NY 10019, arriving at approximately 9:30 P.M.
15. Plaintiff then lawfully hung out with his friend, Aladji Giata, in front of 723 Seventh Avenue, New York, NY 10019.
16. Shortly before midnight on January 5, 2023 or a bit after midnight on January 6, 2023, two police officers approached Plaintiff and his friend and pushed, tackled, and beat Plaintiff for no apparent reason and without any provocation.
17. While Plaintiff was on the ground, additional officers arrived. At least one of the officers present handcuffed Plaintiff and at least one of the officers punched Plaintiff in the face.
18. The officers then stood Plaintiff up, mentioned something about a gun, and searched him, but did not find anything.
19. The officers then gave Plaintiff the business card depicted below which reads, inter alia, "Police Officer Burns Shield Number 21097," and left the area.



20. Upon information and belief, Defendant, P.O. CHRISTOPHER BURNS, was among the officers who pushed, beat, punched, handcuffed, and/or tackled Plaintiff.
21. Upon information and belief, the NYPD police officer assigned to Shield Number 21097 was among the officers who pushed, beat, punched, handcuffed, and/or tackled Plaintiff.
22. P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 were among the officers who pushed, beat, punched, handcuffed, and/or tackled Plaintiff at the time and place aforesaid. As a result of said use of force, Plaintiff's right leg struck a fire hydrant.
23. Upon information and belief, P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 are depicted in the below screenshot, taken from a neighboring store's surveillance camera:



24. Someone called 911 at approximately 12:25 A.M. on January 6, 2023, an ambulance arrived on the scene, and emergency medical personnel escorted Plaintiff inside.
25. Plaintiff was transported by ambulance to Mount Sinai West, where he was diagnosed with a proximal right tibia fracture. Plaintiff further suffered pain and/or injury to his teeth, his lower back, his right hip, and his right shoulder.
26. At all times herein mentioned, Defendants owed Plaintiff a special duty beyond what was owed to the public generally, and breached this special duty by committing the acts and omissions described herein.
27. As a direct and proximate result of Defendants' aforementioned excessive use of force, Plaintiff suffered severe bodily injuries, was rendered sick, sore, lame and disabled, and was forced to spend diverse sums of money in seeking medical care.
28. As a direct and proximate result of these injuries, Plaintiff suffered, and will continue to suffer, continuous pain, suffering, anguish, emotional harm, distress and embarrassment.
29. Defendants' aforementioned actions were done without probable cause, just cause, reasonable grounds, or provocation, and placed Plaintiff in imminent fear of unlawful touching.
30. In addition, P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 actually touched Plaintiff in a hostile, aggressive, excessive, unlawful, and offensive manner without Plaintiff's consent and with the intention of harmful or offensive bodily contact.
31. Defendants' conduct constituted assault and battery, was excessive, unwarranted, unnecessary, and violent, and violated Plaintiff's rights under the Constitution of the United States and the laws of the State of New York.

**SECOND CAUSE OF ACTION:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

32. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.
33. P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 were among the officers who pushed, beat, punched, handcuffed, and/or tackled Plaintiff at the time and place aforesaid.
34. As a result of Defendants' aforementioned excessive use of force, Plaintiff suffered severe bodily injuries, was rendered sick, sore, lame and disabled, and was forced to spend diverse sums of money in seeking medical care.
35. Defendants' aforementioned actions were done without probable cause, just cause, reasonable grounds, or provocation, and placed Plaintiff in imminent fear of unlawful touching.
36. In addition, P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 actually touched Plaintiff in a hostile, aggressive, excessive, unlawful, objectively unreasonable, and offensive manner without Plaintiff's consent and with the intention of harmful or offensive bodily contact.
37. Defendants' conduct constituted assault and battery, was excessive, unwarranted, unnecessary, and violent, and violated Plaintiff's rights under the Constitution of the United States and 42 U.S.C. § 1983.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING/TRAINING/RETENTION**

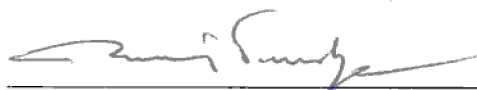
38. Plaintiff repeats and realleges each and every allegation in the preceding paragraphs with the same force and effect as if fully set forth herein.

39. Defendant, THE CITY OF NEW YORK, was negligent in its operation, management, hiring, supervision, retention, and control of its police department, as well as in the training and conduct of the individually named defendants, as well as the other officers involved.
40. As a result of the above-mentioned negligence, NYPD officers, including P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4, assaulted and battered Plaintiff.
41. The actions of the individual defendants complained of were part of the custom, practice, usage, regulation, and/or direction of Defendant, THE CITY OF NEW YORK.
42. Defendant, THE CITY OF NEW YORK, failed to properly screen, hire, train, supervise, and discipline their employees, including the individual defendants complained of, with regard to their propensity for, inter alia, the excessive use of force.
43. This failure led to P.O. CHRISTOPHER BURNS and P.O. JOHN DOES # 1-4 assaulting Plaintiff at the time and place aforesaid in the manner aforesaid.
44. Plaintiff's damages on each of the foregoing causes of action exceed the jurisdictional limits of the lower courts of the State of New York.

WHEREFORE, Plaintiff demands judgment in an amount currently believed to exceed the jurisdictional limits of all lower courts which otherwise would have jurisdiction over this matter on each Cause of Action, together with the costs and disbursements of this action.

Dated: Forest Hills, NY
September 6, 2023

Yours, etc.,

A handwritten signature in black ink, appearing to read "Michael Dreishpoon", is written over a horizontal line.

Law Office of Michael Dreishpoon, P.C.

Michael Dreishpoon, Esq.

Attorneys for Plaintiff

MAMADOU MAGASSA

118-35 Queens Blvd., Ste. 1500

Forest Hills, NY 11375

718-793-5555

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK)

ss.:

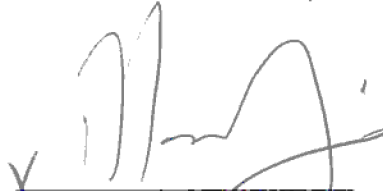
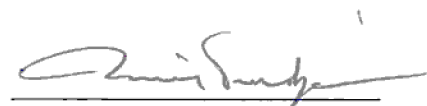
COUNTY OF QUEENS)

I, MAMADOU MAGASSA, being duly sworn, depose and say:

(1) I am the Plaintiff in the within action.

(2) I have read the foregoing complaint and know that the contents thereof are true and accurate.

(3) As to those matters therein stated to be alleged upon information and belief, I believe them to be true.


MAMADOU MAGASSASworn to before me this
6th day of September, 2023
Notary PublicMICHAEL DREISHPOON
Notary Public, State of New York
No. 02DR5020824
Qualified in Queens County
Commission Expires 11/29/2025